

- 4.0 hours reduced to 0.5 hours [“four (4) hours conducting legal research on entitlement to attorney’s fees pursuant to contract and the reasonableness of hourly rates under the Laffey Matrix”] for reduction of 3.5 hours

- 1.0 hour reduced to 0.3 hours [“one (1) hour drafting the request for judicial notice”] for reduction of 0.7 hours

Those reductions total 4.95 hours, leaving a balance of 8.675 hours (\$4,337.50 at the \$500.00 timekeeper rate).

\$1,000.00 Timekeeper, Andrew Wolff (see Wolff Decl.):

The Court finds that the described 5.375 hours described to be reasonable in scope and for the nature of the work described. However, the Court does not find the \$1,000 an hour reasonable and justified for the work described, especially as relates to essentially supervisory work on a routine motion for fees. The Court will reduce the hourly rate for these hours to \$500.00 per hour. 5.375 hours at \$500.00 per hour equals \$2,687.50. In making this reduction, the Court is also mindful of the outcome achieved which was successful on Plaintiffs’ part, but also partially limited in that the Court ordered further meet and confer to resolve the issue to which both sides contributed causing in the first place.

Total Awarded

The total amount awarded for attorneys’ fees and costs is **\$7,025.00** (\$4,337.50 plus \$2,687.50). The Court finds those hours and fees to be reasonable and necessary to the conduct of the litigation.

Disposition

The Court finds and orders as follows:

1. The Motion for Attorney’s Fees is GRANTED.
2. The Plaintiffs are awarded and shall recover from Defendant attorneys’ fees in the sum of **\$7,025.00**.
3. The moving party shall prepare and submit the order after hearing.

2. 9:00 AM CASE NUMBER: C24-02209
CASE NAME: PATRICK MORRISSEY VS. ALBERT SEBILIA
HEARING ON SUMMARY MOTION BY CHRISTOPHER ROBERTS AND COURTLY STEVENS
FILED BY:
TENTATIVE RULING:

On its own motion, the Court continues this hearing to **August 17, 2026** at **9:00 a.m.** in **Department 34**.

3. 9:00 AM CASE NUMBER: C24-02212
CASE NAME: TROY ANDERSON VS. MARK PETERSON
***HEARING ON MOTION IN RE: REQUEST FOR ORDER FOR LEAVE TO REFILE CIVIL COMPLAINT**
FILED BY: ANDERSON, TROY
TENTATIVE RULING:

Before the Court is Plaintiff Troy Anderson's Motion for Order for Leave to Refile Civil Complaint.

Procedural Background

Plaintiff filed his Complaint on August 21, 2024. Defendants filed a Demurrer to Complaint on November 6, 2024. On February 24, 2025, the Court issued a tentative ruling sustaining the demurrer in full and granting Plaintiff leave to amend. The tentative ruling was not contested, so it became the Order of the Court at 4:00 p.m. on February 24, 2025. (Local Rule 3.43 (2).)

On March 20, 2025, Defendants filed and served a Notice of Entry of Order confirming the Court's ruling. The Order made clear that "Plaintiff's amended complaint, if any, is due on or before April 1, 2025."

On June 3, 2025, Defendants appeared ex parte seeking dismissal of this matter due to Plaintiff's failure to timely file his amended complaint. The Court granted the request and executed the Order "dismissing the entire action with prejudice" on June 3, 2025. Notice of entry of the Order was filed and served on June 4.

Over nine months later, on March 25, 2026, Plaintiff filed the instant motion seeking leave to 'refile' his civil complaint.

Legal Standard

Plaintiff seeks to set aside the dismissal with prejudice entered against him pursuant to California Code of Civil Procedure section 473 (b). "The statute includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*)

The 'discretionary' provision is set forth at the beginning of the statute:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

The 'mandatory' provision that relates to times when an attorney admits fault in causing the default. That provision is not at issue in this matter.